

HOUSE No. 5292

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 25, 2026.

The committee on Telecommunications, Utilities and Energy, to whom was referred the petition (accompanied by bill, House, No. 3551) of Estela A. Reyes relative to the use of smart meters by utility companies, reports recommending that the accompanying bill (House, No. 5292) ought to pass.

For the committee,

MARK J. CUSACK.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to smart meters.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 116C of Chapter 164 of the General Laws, as inserted by Section 79 of Chapter
2 239 of the Acts of 2024, is hereby amended by striking subsection (c) and inserting in place
3 thereof the following subsection:

4 (c) Electric customers may opt out of inclusion in the implementation of advanced
5 metering infrastructure with notice to the distribution company. Upon receiving such notice, the
6 distribution company shall remove the customer from the implementation plan and notify the
7 department of the customer's decision to opt out of such implementation plan in a manner
8 determined by the department. The distribution company may charge such a customer any
9 reasonable and necessary fees for delivering non-advanced metering service, provided, however,
10 that said fees shall adhere to a uniform statewide rate established by the department that shall be
11 applied uniformly across all utility companies as determined by the department.